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California Assembly bill would keep some chemicals out of the mouths of babes

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Assemblymember Jesse Gabriel (D-Encino) on March 12 introduced a bill to ban six harmful food dyes and titanium dioxide from food provided in California's public schools.

If enacted, California Assembly Bill 2316 would ban Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 2, and Green Dye No. 3, and the food additive titanium dioxide. These chemicals have been linked to behavioral problems in children.

"California has a responsibility to protect our students from chemicals that harm children, and that can interfere with their ability to learn," said Gabriel. "As a lawmaker, a parent, and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to cancer, hyperactivity, and neurobehavioral harms. This bill will empower schools better to protect the health and wellbeing of our kids and encourage manufacturers to stop using these dangerous additives."

Last year, Gabriel successfully authored, and Gov. Gavin Newsom signed into law, the California Food Safety Act, which banned potassium bromate, propylparaben, BVO, and Red Dye No. 3 from food sold, delivered, and manufactured in the state. Illinois and New York are considering similar bills for this session.

The California Office of Environmental Health Hazard Assessment in 2021 released a study finding that many food dyes and colorants make some children vulnerable to behavioral difficulties and decreased attention.

Other human studies have linked these dyes to inattentiveness, learning difficulties, and restlessness. Titanium dioxide has also been shown to cause DNA damage and harm to the immune system.

"Many children rely on school meals as a source of their daily nutrition and calorie intake," said Tasha Stoiber, Ph.D., senior scientist with the Environmental Working Group. "Kids deserve wholesome foods that don't negatively impact their ability to learn, and parents deserve the confidence that the schools they're sending their kids to aren't serving them food that may harm them."

EWG and Consumer Reports endorse Assembly Bill 2316. The bill will be referred to a policy committee and receive its first hearing this spring.

Toxic chemicals

Thousands of chemicals are allowed for use in food sold in the United States. Many of the food chemicals the FDA has reviewed have not been evaluated for decades, even when new science is available. For instance:

* Titanium dioxide, which has been linked to damage to DNA and harm to the immune system, hasn't been assessed since 1966. In 2022, the European Union prohibited it from use in food offered for sale, but it is still allowed in food sold in the U.S.

* Red Dye No. 40 has not been evaluated for health risks since 1971. Many studies show it may pose a risk to brain development in children, hyperactivity, and even cancer.

* Yellow Dye No. 5 has been approved for use since 1931. The FDA affirmed its use of good manufacturing practices in 1969.

* Yellow Dye No. 6 was approved in 1931, and the FDA reaffirmed its use in 1986.

* Blue Dye No. 1 has been approved for use since 1931. Its use was affirmed in 1969.

* Blue Dye No. 2 was last reviewed in 1983.

* Green Dye No. 3 has been allowed for use since 1931 and hasn't been reviewed since 1982.

"These dangerous dyes should not be allowed in foods sold in schools because they put kids at risk for hyperactivity and other neurobehavioral issues," said Consumer Reports, Brian Ronholm, food policy director. "Removing these harmful dyes from school foods will protect the health and well-being of kids in California."

According to EWG and Consumer Reports consumers consistently rank food chemical concerns ahead of other food safety issues. However, they say the FDA does not adequately regulate additives.

"The FDA continues to fail to keep us safe from harmful chemicals in our food," said Melanie Benesh, EWG's vice president of government affairs. "In the absence of federal leadership, states like California continue to step up to keep us safe from toxic chemicals we and our families enjoy."

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